

the pleadings in favor of a defendant if the complaint fails to state facts sufficient to constitute a cause of action against that defendant. A complaint "is sufficient if it alleges ultimate rather than evidentiary facts." (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) Like on demurrer, when considering a motion for judgment on the pleadings, the Court must accept as true all facts alleged in the complaint. (*Fireman's Fund Ins. Co. v. Sparks Construction, Inc.* (2004) 114 Cal.App.4th 1135, 1151.) The grounds for such motion must appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 438 (d).)

#### **IV. Discussion**

Petitioner does not oppose the motion with respect to the injunctive relief "cause of action." The Court construes this as an admission of the motion's merit.

As to declaratory relief, such remedy is appropriate where "[a]ny person [...] desires a declaration of his or her rights or duties with respect to another [...] in cases of actual controversy relating to the legal rights and duties of the respective parties [...]" (Code Civ. Proc., § 1060.) The availability of such relief is discretionary. (*Ibid.* ["court *may* make a binding declaration of these rights or duties"].) Further, courts have generally held that the declaratory relief statute should not be used for the purpose of determining an issue which can be determined in the main action. (*Hood v. Superior Court* (1995) 33 Cal.App.4th 319, 324.)

Here, as pointed out in the motion, the Court has already determined the merits of the writ cause of action. It would be improper to allow Petitioner a renewed opportunity to make the same arguments he could have presented to support a writ of mandate. Even at the time of the Court's previous ruling, Petitioner was not the Mayor. At this point, it has been more than two years since Petitioner was Mayor. Petitioner offers no facts in support of his opposition that indicate this is an ongoing problem with respect to the current City government. Accordingly, he has not met his burden to show amendment of the petition is justified. Should Petitioner contest this ruling, he shall appear prepared with facts that indicate an actual controversy as contemplated by Code of Civil Procedure, section 1060.

**17. 9:01 AM CASE NUMBER: C24-01615**  
**CASE NAME: MARIUS CANTEA VS. FCA US LLC**  
**\*HEARING ON MOTION FOR DISCOVERY TO COMPEL FURTHER RESPONSES TO PLAINTIFFS**  
**REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE**  
**FILED BY: CANTEA, MARIUS**  
**\*TENTATIVE RULING:\***

Appearance required.

**18. 9:01 AM CASE NUMBER: C23-01482**  
**CASE NAME: MAURO LUIS VS. SURINDER SINGH**  
**\*HEARING ON MOTION FOR DISCOVERY COMPEL ATTENDANCE AND TESTIMONY OF THE PERSON**